

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES 1 11	
2. AMENDMENT/MODIFICATION NO. 0001		3. EFFECTIVE DATE 04/24/2026		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO. (If applicable)	
6. ISSUED BY USDA ARS ACQUISITION AND PROPERTY D 5601 SUNNYSIDE AVENUE RM 3-2102 BELTSVILLE MD 20705		CODE ARS-1232SA		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)				(x) 9A. AMENDMENT OF SOLICITATION NO. 1232SA26Q0433			
				x 9B. DATED (SEE ITEM 11) 04/24/2026			
				10A. MODIFICATION OF CONTRACT/ORDER NO.			
				10B. DATED (SEE ITEM 13)			
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☒ is not extended. Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods: (a) By completing Items 8 and 15, and returning _____ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.						
	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).						
	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:						
	D. OTHER (Specify type of modification and authority)						
E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)							
Contracting Officer: Jessica Hadley Contract Specialist: Kerrie Hodges - kerrie.hodges@usda.gov The purpose of this modification is to incorporate the mandatory contract clause FAR 52.222 90, Addressing DEI Discrimination by Federal Contractors (Apr 2026), as required by Executive Order 14398. This modification will not affect the period of performance or scope. All other terms and conditions remain unchanged. Period of Performance: 06/01/2026 to 05/31/2027							
Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				JESSICA N. HADLEY			
15B. CONTRACTOR/OFFEROR		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA		16C. DATE SIGNED	
_____ (Signature of person authorized to sign)				_____ (Signature of Contracting Officer)			

**Cow Lactation and Dry Premix Feed
1232SA26Q0433**

Statement of Requirement

United States Department of Agriculture (USDA) National Animal Disease Center (NADC) in Ames, Iowa, required an Indefinite-Delivery Indefinite-Quantity Contract for premixed cattle feeds as described in Attachment 1- Statement of Work (SOW)

Schedule of Items -

CLIN	Description	Estimated Quantity	Unit of Issue	Unit Cost	Total
0001	Cow Lactation Premix	125	Ton		
0002	Dry Cattle Premix	30	Ton		
TOTAL					

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference

Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-4	Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50	Combating Trafficking in Persons (Nov 2025)
52.222-90	Addressing DEI Discrimination by Federal Contractors (Apr 2026)
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39	Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Sep 2025)
52.233-4	Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91	Security Prohibitions and Exclusions (Nov 2025)
52.244-6	Subcontracts for Commercial Products and Commercial Services (Nov 2025)

**Cow Lactation and Dry Premix Feed
1232SA26Q0433**

The following clauses are applicable if checked:

- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☒ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
- ☒ 52.225-1 Buy American-Supplies (Nov 2025)
(Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☒ 52.232-36 Payment by Third Party (Nov 2025)
- ☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☒ 52.237-3 Continuity of Services (Jan 1991)

Other Applicable Clauses

- 52.216-18 Ordering (Aug 2020)
- 52.216-19 Delivery – Order Limitations (Oct 1995)
- 52.216-21 Requirements (Nov 2025)
- 52.216-22 Indefinite Quantity (Nov 2025)
- 52.217-7 Option for Increased Quantity - Separately Priced Line Item (Mar 1989)
- 52.247-34 F.O.B. Destination (Jan 1991)

AGAR Clauses

452.204-70 Modification for Contract Closeout (Nov 2025)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The Contracting Officer shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The Contracting Officer may also request a "Contractor Release of Claims" be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 60 days, the Contracting Officer shall release the modification as unilateral and proceed with contract close-out upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

Cow Lactation and Dry Premix Feed
1232SA26Q0433

(c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than \$1000 remain on the contract, the Contracting Officer shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a “Contractor Release of Claims” and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the Contracting Officer within 120 days, the Contracting Officer shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(End of Clause)

452.211-71 Variation in Quantity (Sep 2025)

(a) A variation in the quantity of any item called for by this contract will not be accepted unless the variation has been caused by conditions of loading, shipping, or packing, or allowances in manufacturing processes, and then only to the extent, if any, specified in paragraph (b) of this clause.

(b) The permissible variation shall be limited to:

15% Percent increase

15% Percent decrease

This increase or decrease shall apply to each quantity specified in the delivery schedule

(End of clause)

452.211-72 Delivery of Excess Quantities (Sep 2025)

The Contractor must deliver item quantities within allowable variations. Excess quantities received by the Government are considered delivered for the Contractor's convenience. The Government may keep excess quantities up to \$250 in value without compensating the Contractor therefore, and the Contractor waives all rights, title, or interests therein. For excess quantities over \$250, the Government may return the items at the Contractor's expense or retain and pay at the contract unit price.

(End of clause)

Solicitation Information

Award Type

It is anticipated that a firm-fixed price requirements contract consisting of one (1) one-year base period shall be awarded as a result of this synopsis/solicitation. The total duration of this contract shall not exceed 1 year.

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the offeror representing the best value to the Government.

Cow Lactation and Dry Premix Feed
1232SA26Q0433

Technical Approach:

The technical approach will evaluate the ability of the offeror to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the contractor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements. All offerors must provide the following minimum information and documentation with their quotations to be considered responsive and have their offers evaluated:

- Ability of the offeror to meet the schedule requirements listed in the Statement of Work (SOW).
- Detailed explanation of any requirement listed in the SOW that cannot be successfully accomplished by the offeror.

Price:

The offeror shall provide pricing as requested in the Schedule of Items on page **1** of this Request for Quote. Failure to propose pricing for all individual line items may result in a quotation being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Past Performance:

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.
- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Evaluation Method:

The Government intends to evaluate quotations using a comparative evaluation methodology. This means quotations will be compared against one another to determine which provides the best value to the Government, based on the evaluation factors outlined in this solicitation.

The Government may consider quotations that exceed minimum requirements and offer additional value or benefits, even if they are not the lowest priced. However, formal tradeoff procedures will not be conducted.

**Cow Lactation and Dry Premix Feed
1232SA26Q0433**

Delivery Information

F.o.b. destination, is requested as the F.O.B. point for all deliverables.

All offers will be considered F.O.B. Destination unless F.O.B. origin is specified AND estimated shipping costs are included.

The USDA requires delivery of items from 6/1/2026 – 5/31/2027. Early deliveries will be accepted.

Shipping Instructions:

Items shall be shipped to the following address:

USDA-NADC

1920 Dayton Ave, Bldg. 13

Ames, IA 50010

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Questions shall be submitted via email to kerrie.hodges@usda.gov and are due no later than May, 1, 2026, at 12:00 PM CDT. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

**Cow Lactation and Dry Premix Feed
1232SA26Q0433**

The following provisions are applicable if checked:

- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)

AGAR Provisions

**NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program**

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.

Cow Lactation and Dry Premix Feed
1232SA26Q0433

5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.

**Statement of Work (SOW)
for the
Cattle Premixes Contract**

1.0 General

1.1 Background

The mission of the USDA-NADC Animal Resources Unit in Ames, Iowa is to provide animal care and support services for internal users that rely on animals and animal products for research, testing, and training.

1.2 Objective

Fresh, clean, high-quality feed is critical to support animal health and well-being. The contractor shall make deliveries within four (4) working days after receipt of a telephone or written order from an authorized Government employee. Partial deliveries of a minimum quantity may be requested.

1.3 Scope of Work

The Contractor shall provide all resources necessary to accomplish the tasks and deliverables described in this Statement of Work. The Contractor shall make deliveries within four (4) working days after receipt of a telephone or written order from an authorized Government employee. Partial deliveries of a minimum quantity may be requested. Deliveries shall be made to: United States Department of Agriculture (USDA), Agricultural Research Service (ARS), Mid-West Area (MWA), National Animal Disease Center (NADC), 1920 Dayton Avenue, Building 13, Ames, Iowa 50010. Deliveries shall be made during normal business hours of 7:30 a.m. through 2:30 p.m. (Local Time at Ames) Monday through Friday, excluding Federal holidays. Deliveries will be made in clean, closed vehicles not used in the transportation of livestock. The Contractor shall assure that the material conforms to the specifications in the contract prior to delivery. Upon delivery, at destination, the Government reserves the right to reject any or all parts of a shipment, if in the opinion of the Government, does not meet the requirements contained herein.

The Contractor shall provide the Government with a certified copy of both the empty and loaded weight tickets, at the time of each delivery for all bulk feed deliveries. Both weight tickets must be obtained from the same official weighing station that has the firm's name inscribed on the weigh ticket.

A delivery ticket must accompany each order (allowing for the signature of person making the delivery and signature of Government personnel receiving the delivery).

Deliveries shall be made direct from the mill to the NADC by enclosed clean truck without transfer from truck to truck or through terminals and unloaded at location specified by the NADC.

SPECIFICATIONS

Item 1: Cow Lactation Premix

GROUND CORN	909.60#
AMINO PLUS	424.50#
SOYHULLS	363.90#
MOLASSES - Dry	109.20#
CALCIUM CARBONATE	54.60#
DV XP YEAST	36.40#
SALT – PLAIN	25.50#
SODIUM BICARBONATE	25.50#
POTASSIUM CARBONATE	12.10#
UREA	12.10#
DICAL 21% Phos	12.10#
MAGNESIUM OXIDE – 56%	9.70#
DAIRY TRACE MINERAL	2.40#
VITAMIN E – 50	1.2128#
SELENIUM 1600	1.1279#
VITAMIN D3-200	0.0606#
VITAMIN A – 1000	<u>0.0485#</u>
	2,000#

Item 2: Dry Cattle Premix

AMINO PLUS	666.60#
SOYHULLS	689.40#
MOLASSES - Dry	166.60#
CALCIUM CARBONATE	133.40#
DV XP YEAST	133.40#
SALT – PLAIN	33.40#
UREA	33.40#
DICAL 21% Phos	66.45#
MAGNESIUM OXIDE – 56%	53.40#
DAIRY TRACE MINERAL	13.34#
VITAMIN E – 50	6.67#
SELENIUM 1600	3.34#
VITAMIN D3-200	0.33#
VITAMIN A – 1000	<u>0.27#</u>
	2,000#

BULK – NO BAGS

Ration must be thoroughly mixed only, not pelleted or ground.

Feeds should **not** contain:

1. Antibiotics
2. Hormones
3. Chemical growth promotants
4. Animal Products or by-products
5. Bactericides, Bacteriostats or Coccidiostats

If the mill to be used has processed feed containing any of these materials prior to mixing Government feeds, it shall be flushed with at least two tons of feed which does not contain any of the above-mentioned additives immediately before processing. This is to be done at the expense of the Contractor.

1.4 Period of Performance

The contract effective date shall run for one full year from start date.

1.5 Place of Performance

Feed will be delivered to USDA, NCAH, 1920 Dayton Ave, Ames, IA. Delivery shall not be made on Federal Holidays or Observance of Federal Holidays (New Year's Day, Martin Luther King Jr. Birthday, Washington's Birthday, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day). If the Monday is a Federal Holiday or the Observance of the Federal Holiday, then the delivery will be made on Tuesday of that week.

The following rules and regulations apply to all property at the National Center for Animal Health (NCAH), Ames, Iowa, under the custody of the United States Department of Agriculture (USDA) and to all persons entering on such property.

Admission to Property: The campus is closed to the general public. Admission to the facility is restricted to authorized persons and approved visitors. No pets or weapons of any kind are allowed on premises. Upon entry, visitors:

1. Will be required to present Government issued identification or other identifying credentials to the Officer at the Visitor Gate (photo driver's license, passport, or other official photo identification).
2. Will be issued a visitor's badge and must wear and display the badge at all times while visiting the facilities.

NOTE: Items purchased under this contract will be used to feed animals under research. Since diet is an essential control factor necessary in the Center's research, no substitution or deviation from the formulations is permissible without approval from the USDA. Only Clean, high-quality ingredients are to be used. Combining/Blending with like ingredients of low quality or possible contamination is not acceptable. This would include but not limited to mold and mycotoxins within feed ingredients.